

Court No. - 46

Case :- WRIT - C No. - 18439 of 2020

Petitioner :- Mukhtar Washeem

Respondent :- Uttar Pradesh Power Corporation Limited And 2 Others

Counsel for Petitioner :- Sandeep Kumar

Counsel for Respondent :- Usha Kiran

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

As prayed by Ms. Usha Kiran, learned counsel appearing for the respondents, put up this case on 24.11.2020 in the additional cause list to enable her to take instructions in the matter.

Order Date :- 17.11.2020

SKT/-

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Counsel for Respondent :- Usha Kiran

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

Heard Shri Sandeep Kumar, learned counsel for the petitioner and Ms Usha Kiran, learned counsel appearing on behalf of respondent No. 2 and 3.

The instant writ petition has been filed seeking the following relief:

"1. Issue a writ, order or direction in the nature of certiorari quashing the impugned electricity bill/demand dated 14.10.2020 issued by respondent Nos. 2 and 3.

2. Issue any other writ, order or direction, which this Hon'ble Court may deem fit and proper in the circumstances of the case."

Learned counsel for the petitioner has disputed the accuracy of the bill issued by respondent-Corporation.

Ms Usha Kiran, learned counsel for the respondent-Corporation submits that petitioner has a remedy to approach the authority concerned under Clause 6.5 of the U.P. Electricity Supply Code, 2005. She further submits that in case the petitioner approaches the said authority, the competent authority shall consider the same and pass appropriate order within the stipulated period.

Considering the facts and circumstances of the case, the present writ petition is disposed of with liberty to the petitioner to approach the competent authority under Clause 6.5 of the Electricity Supply Code, 2005 within 15 days from today, the said authority shall consider the case of the petitioner and pass appropriate orders in accordance with law within a period of one month thereafter.

With the aforesaid observations, the writ petition stands disposed of.

Order Date :- 24.11.2020
Ishrat